

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

July 10, 2023

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Cook, and pursuant to support received by Dr. Aldrich and Mr. Roybal, items #21 and 22 were removed from the Consent Agenda. Upon request by Mr. Laybourn and pursuant to support received by Dr. Aldrich and Mr. Segrave, item #26(a) was removed from the Consent Agenda. Upon request by Dr. Rinne and pursuant to support received by Dr. Aldrich and Mr. Esquibel, item #28(a) was removed from the Consent Agenda. Mr. Segrave moved to approve remaining items, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on June 26, 2023. Motion (per Consent Agenda) carried.

ORDINANCE – 2nd READING – Creating Chapter 2.96, Ethical Obligations of Public Officials, Public Members and City Employees, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, specifying the ethical duties and obligations of Public Officials, Public Members and Employees of the City of Cheyenne (Postponed from June 26, 2023). Reporting for Public Services Committee, Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Mr. Cook moved to amend section 2.96.050(A)(2) to strike the words “Advocate or” and in section 2.96.060 to strike in the 1st sentence “or the removal of a public official or public member from his or her office or position”, seconded by Mr. Segrave. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson and Mr. Roybal voting “no”. Mr. Cook moved to strike section 2.96.040(B), seconded by Mr. Segrave. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson and Mr. Roybal voting “no”. Mr. Cook moved to amend existing City Code section 2.52.010 to insert “in Chapter 2.96 of city code or” after the phrase “Unless otherwise provided”, seconded by Mr. Segrave. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson and Mr. Roybal voting “no”. Main motion as amended failed due to a tie vote. Voting “yes” - Dr. Aldrich, Mr. Esquibel, Mr. Laybourn, Mr. Segrave and Mr. White. Voting “no” Mayor Collins, Mr. Cook, Mr. Johnson, Dr. Rinne and Mr. Roybal.

ORDINANCE – 3rd READING – Amending Chapter 15.20, National Electrical Code Adopted-Appendix K, International Building Code-Administrative Provisions Adopted, of Title 15, Buildings and Construction, of the Municipal Code of the City of Cheyenne, Wyoming, updating the Incorporated National Electrical Code Provisions as specified. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”. Comment was made by the following members of the governing body: Mr. Johnson. (#4509)

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, land located northwest of and adjacent to the intersection of Thomas Road and Ridge Road. Mr. Cook moved to approve on third and final reading, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body. (#4510)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of MR Medium-Density Residential for land being annexed to the City of Cheyenne located northwest of and adjacent to the intersection of Thomas Road and Ridge Road. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4511)

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, land located south of and adjacent to Rawlins Street, east of Cleveland Avenue. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4512)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of MR Medium-Density Residential for land being annexed to the City of Cheyenne located south of and adjacent to Rawlins Street, east of Cleveland Avenue. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4513)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of AG Agricultural for land being annexed to the City of Cheyenne located southwest of and adjacent to the intersection of Holland Court and Ridge Road. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4514)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from LI Light Industrial and MR Medium-Density Residential to MR Medium-Density Residential for land located on Lots 14 and 15, Christensen Park. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4515)

ORDINANCE – 3rd READING – Amending Section 2.4.2 Annexations of the Unified Development Code, and creating Section 2.2.8, Assigned Zoning, clarifying City zone assignment processes in concert with annexations and when removing City zone districts. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4516)

ORDINANCE – 3rd READING – Amending Section 2.2.1.c.5 and 2.2.2.c.6 of the Unified Development Code (UDC), amending protest petitions for zoning map amendments and planned developments. Mr. Cook advised there was no recommendation from Public Services Committee. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Dr. Rinne moved to amend by increasing the required percentage of signatures of adjacent landowners for protest petitions from 20% to 50%, seconded by Mr. Cook. Motion to amend failed. Voting “no” – all members of the governing body. Main motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich and Mr. Laybourn voting “no”. Public comments were made by: Jason Stephen, Bedrock Development, Dan Dorsch, Director, Habitat for Humanity of Laramie County, Rebecca Merchie, Elizabeth Stapel, Peggy Escamilla and Michael White. Comments were made by the following members of the governing body: Dr. Aldrich and Dr. Rinne. (#4517)

ORDINANCE – 2nd READING – Creating Chapter 8.68, Camping in Public Places, of Title 8, Health and Safety, of the Municipal Code of the City of Cheyenne, Wyoming, Prohibiting the Act of Camping on Public Property as Specified. Mr. Cook moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”. Public comments were made by: Del Scholfield, Floyd’s Truck Center, Robert McDaniels, Trails End Homeowners Association, David Dillon, McCandless Truck Center, Billie Hopka, Chris Taveira and Cathy Deister, Trails End. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Johnson, Mr. Laybourn, Dr. Rinne and Mr. White. [Clerk’s note: Mr. Esquibel left the meeting after the vote on this item at 7:30 p.m.]

ORDINANCE – 1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from HI Heavy Industrial, AG Agricultural and County A-2 to LI Light Industrial for land located west of Burlington Trail and south of and adjacent to HR Ranch Road – referred to Public Services Committee. (Sponsor – Mr. Cook)

RESOLUTION – Approving water services, by outside user agreement, for properties to be known as Ironhorse 3rd Filing, Laramie County, Wyoming generally located southeast of West Riding Club Road and Hynds Boulevard (Postponed from June 26, 2023). Mr. Cook advised there was no recommendation from Public Services Committee. Mr. Cook moved to adopt, seconded by Dr. Rinne. Motion failed. Voting “yes” – Mr. Cook, Mr. Johnson and Dr. Rinne. Voting “no” – Dr. Aldrich, Mr. Laybourn, Mr. Roybal, Mr. Segrave and Mr. White. Public comment was made by: Matt Kaufman, representing Ironhorse Capital, Michael White and Casey Palma, Palma Land Planning. Comments were made by the following members of the governing body: Dr. Aldrich, Dr. Rinne and Mr. Segrave.

[CA] RESOLUTION – Amending Resolution #6094, the City of Cheyenne Comprehensive Consolidated Plan 2020-2024 and 2020 Annual Action Plan, prepared by the Cheyenne Housing and Community Development Office. Motion (per Consent Agenda) carried. (#6333)

RESOLUTION – Pursuant to Wyoming Statute § 15-9-106 Finding and Declaring Jolly Rogers and Expanded Downtown in the City of Cheyenne as blight and authorizing the redevelopment thereof. Mr. Cook advised there was no recommendation from Public Services Committee. Mr. Cook moved to adopt, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present with the exception of Dr. Aldrich and Mr. Laybourn voting “no”. Public comment was made by: Dan Dorsch, Director, Habitat for Humanity of Laramie County. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Johnson, Mr. Laybourn, Dr. Rinne and Mr. Segrave. (#6334)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Sunrise Hills North Subdivision, a replat of a portion of Tract 25, Dell Range Addition, Laramie County, Wyoming (located northwest of and adjacent to the intersection of Thomas Road and Ridge Road). Mr. Cook moved to adopt, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#6335)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Christensen Park, 2nd Filing, a Replat of Lot 15, Christensen Park, City of Cheyenne, Laramie County, Wyoming (located northwest of the intersection of Cribbon Avenue and Dodge Ct.). Mr. Cook moved to adopt, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#6336)

RESOLUTION – To initiate annexation proceedings by the City of Cheyenne for an area generally located west of Interstate 25, north of State Highway 210, east of Roundtop Road, and south of Horsecreek Road, commonly known as Francis E. Warren Air Force Base, Wyoming. Mr. Cook moved to adopt, seconded by Mr. White. Mr. Cook moved to amend by substitute dated July 3, 2023, seconded by Mr. Segrave. Motion to amend by substitute carried. Voting “yes” – all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present. Public comment was made by: Michael White. Comments were made by the following members of the governing body: Mayor Collins, Mr. Laybourn, Dr. Rinne and Mr. Segrave. (#6337)

[CA] RESOLUTION – Authorizing the submission of an application by the City of Cheyenne for federal funding through the Transportation Alternatives Program administered by the Wyoming Department of Transportation for the purpose of construction for a Greenway path for pedestrians and bicycles from the Sun Valley Open Space into Kiwanis Community Park. Motion (per Consent Agenda) carried. (#6338)

[CA] RESOLUTION – Certifying Planning Commission action amending the Future Land Use maps of PlanCheyenne changing the land use category from Mixed-Use Residential to Mixed-Use Employment for property generally located west of Burlington Trail and south of and adjacent to HR Ranch Road – referred to Public Services Committee. (Sponsor – Mr. Cook)

Memorandum of Understanding between the Cheyenne Historic Preservation Board and the Cheyenne Masonic Building Association regarding the fulfillment of the match requirement for the Wyoming State Historic Preservation Office, Certified Local Government Grant awarded to the Cheyenne Historic Preservation Board for a building assessment on the Masonic Temple. Mr. White moved to approve, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present. Public comment was made by: Kelley Davis, representing Cheyenne Masonic Building Association. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Laybourn and Mr. Roybal. (#7789)

[CA] Purchase and Sale Agreement between the City of Cheyenne and Gysel Whitney, LLC for the future Storey Boulevard Right-of-Way (2023-2026 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$555,780.00). (#7790)

[CA] Utility Easement Agreement between the City of Cheyenne and the Board of Public Utilities for installation and maintenance of a water main on City owned property. Motion (per Consent Agenda) carried. (#7791)

[CA] Professional Services Agreement between the City of Cheyenne and Summit Engineering for Engineering Design for the Sun Valley to Kiwanis Park Greenway Connector (2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Intergovernmental Agreement between the City of Cheyenne and Laramie County School District #1 concerning joint use of facilities – referred to Finance Committee.

[CA] Consideration of Bid #E-27-23 for the Transfer Station Lift Station Package and Equipment (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-28-23 for the Compost Facility Waste Hauling Project (Solid Waste Fund) – referred to Finance Committee.

Bar and grill liquor license application filed with the City Clerk’s Office for Wyoming Downs OTB14, LLC d/b/a Wyoming Downs OTB14, LLC, 1345 Dell Range Blvd., Cheyenne, WY. Mr. White moved to approve, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present. Public comment was made by: Traci Lacock, legal counsel for Wyoming Downs OTB14, LLC. Comments were made by the following members of the governing body: Dr. Aldrich and Dr. Rinne.

There were no comments made on the Voucher Report as presented.

Announcement was made that the July 24, 2023 City Council meeting will be held in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, and via electronic conference meeting at Noon instead of 6:00 p.m.

The following members of the governing body made comments under other business: Dr. Aldrich and Mr. Johnson.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:54 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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